



CHAPTER 81.

An Act to make provision for securing and controlling the enlistment of men for service in the armed forces of the Crown; and for purposes connected with the matter aforesaid.

[3rd September 1939]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) His Majesty may from time to time by proclamation direct that, save as otherwise provided by this Act, every male person who—

Proclama-
tions sub-
jecting
persons to
Act.

- (a) at the date of the proclamation is a British subject; and
- (b) has at that date attained such age not being less than eighteen years of age as may be specified in the proclamation, but has not, at that date, attained such greater age not being more than forty-one years as may be so specified; and
- (c) is at that date within Great Britain, or not having been in Great Britain at that date subsequently enters it,

shall on the date of the proclamation or on the date on which he first enters Great Britain after the date of the proclamation, as the case may be, become liable under this Act to be called up for service in the armed forces of the Crown:

Provided that a person shall not by virtue of any proclamation become liable under this Act to be called up after he has attained the age of forty-one years.

(2) A person who by virtue of any proclamation under this section becomes liable to be called up for service shall, save as otherwise provided by this Act, remain so liable until he has attained the age of forty-one years and no longer.

Registra-
tion.

2.—(1) The Minister may make regulations requiring persons who become liable under this Act to be called up for service—

- (a) to furnish, at such place and time, in such manner, and to such authority or person, as may be notified in accordance with the regulations, such particulars about himself as may be so notified; and
- (b) except in the case of a person not required by the regulations to make such an application, to make at such place and time, in such manner and to such authority or person as may be notified in accordance with the regulations, an application to be registered under this Act.

(2) Such regulations as aforesaid may make different provision in relation to different classes of persons liable under this Act to be called up for service, and may provide for exempting from any requirements of the regulations any class of persons with respect to whom the Minister is satisfied that particulars sufficient for the purposes of this Act can be ascertained by him otherwise than by virtue of those requirements.

(3) If any person fails to comply with any of the requirements of regulations made under subsection (1) of this section, he shall, save as hereinafter provided, be guilty of an offence under this Act.

(4) It shall be the duty of the Minister to secure—

- (a) that upon an application being duly made for registration under this Act, the name and address of the applicant (together with particulars of the matters with respect to which information was given by the applicant in

accordance with the regulations), are entered in a register kept for the purposes of this Act (hereinafter referred to as "the military service register"); and

- (b) that upon the applicant being registered a certificate of registration is issued to him in the prescribed form.

(5) The Minister may cause a certificate of registration to be issued to any person of a class exempted from any of the requirements of regulations under this section, as if that person had duly made application to be registered under this Act.

(6) If any person liable under this Act to be called up for service notifies the Minister in the prescribed manner that he has a preference for naval or air force service, that fact shall be recorded in the military service register, or, if he is a person of a class exempted from registration, in such other manner as the Minister thinks fit.

(7) A person to whom a certificate of registration has been issued under this section shall, if at any time while he is liable under this Act to be called up for service he is requested so to do by a constable in uniform, produce the certificate to the constable or, if the person to whom the request is made has not the certificate with him, produce it in person within two clear days at such police station as he may notify to the constable making the request.

If any person fails to comply with this subsection, he shall, save as hereinafter provided, be guilty of an offence under this Act.

(8) Regulations of the Minister may provide for the issue, in specified circumstances, of fresh certificates of registration in place of certificates which have been lost, destroyed or defaced.

(9) If, at any time while a person registered under this Act is liable under this Act to be called up for service, any change occurs in his name or address, he shall forthwith notify the change to the Minister in the prescribed manner, and at the same time return to the Minister any certificate of registration held by him,

and if he fails to do so, he shall, save as hereinafter provided, be guilty of an offence under this Act; and the Minister, upon the receipt of the notification, shall cause the necessary corrections to be made in the register and shall either cause the certificate to be corrected and returned to him or cause a fresh certificate to be issued to him.

Medical
examina-
tion.

3.—(1) The Minister may from time to time cause to be served on any person for the time being liable under this Act to be called up for service a written notice in the prescribed form requiring that person to submit himself to medical examination by a medical board at such place and time as may be specified in the notice; and where such a notice has been served on any person the Minister may at any time while that person remains liable to be called up for service cancel the notice or cause to be served on him a further notice varying the original notice by altering the place or time at which he is thereby required to submit himself to medical examination.

(2) The Minister may make regulations for determining the constitution of medical boards for the purposes of this section, and for regulating the procedure of such boards, and such regulations may, in particular, provide for enabling a medical board—

- (a) in a case where the board is unable to complete a medical examination on one occasion, to direct the person examined to submit himself to a further medical examination by a medical board at a specified time and place; and
- (b) to direct the person examined to submit himself to examination by a consultant examiner.

(3) The Minister shall by Regulations determine the categories in which persons medically examined under this section are to be placed by reference to their physical condition.

(4) If any person fails to comply with the requirements of a notice served on him under this section or of any regulations made or directions given by virtue thereof, he shall, save as hereinafter provided, be guilty of an offence under this Act.

(5) The court by which any person is convicted of an offence under this Act by reason of his failure to comply with the requirements of regulations made under subsection (1) of the last preceding section, with the requirements of subsection (9) of that section or with the requirements of a notice served on him or directions given to him under this section, may, without prejudice to any penalty which may be imposed on him, make such orders (including orders for his arrest and detention) as may be necessary to secure compliance with the requirements or otherwise to secure his attendance before a medical board or consultant examiner, as the case may be.

(6) A notice served on any person under this section shall cease to have effect if, before the date on which he is thereby required to submit himself to medical examination, he ceases to be liable under this Act to be called up for service.

(7) The Minister may pay—

- (a) to members of medical boards constituted for the purposes of this section, and to consultant examiners employed for those purposes, such remuneration and allowances as he may, with the approval of the Treasury, determine, and
- (b) to persons undergoing medical examination under this section such travelling and other allowances, including compensation for loss of remunerative time, in accordance with such scale as he may, with the consent of the Treasury, approve.

4.—(1) The Minister may cause to be served on any person for the time being liable under this Act to be called up for service who has been medically examined under the last preceding section a written notice (hereinafter referred to as “an enlistment notice”) stating that he is called upon for service in such one of His Majesty’s armed forces as may be specified in the notice, and requiring him to present himself at such place and time (not earlier than the third day after the date of the service of the notice), and to such authority, as may be so specified; and, subject to the following provisions of this Act, the person upon whom the notice is served shall be deemed, as from the day so specified,

Enlist-
ment in
the forces.

to have been duly entered or enlisted for service in the force so specified, and the term or period for which he is so entered or enlisted shall, notwithstanding anything in any Act or regulations, be deemed to be from the beginning of the said day until the end of the present emergency.

(2) Where an enlistment notice has been duly served on any person, the Minister may, at any time while that person remains liable under this Act to be called up for service, cancel the notice or cause to be served on him a further enlistment notice varying the original notice by altering the place or time at which he is thereby required to present himself.

(3) An enlistment notice served on any person shall cease to have effect if before the date on which he is thereby required to present himself he ceases to be liable under this Act to be called up for service.

(4) The Minister may pay to persons required to present themselves in accordance with enlistment notices served upon them such travelling and other allowances as he may, with the approval of the Treasury, determine.

Conscientious
objectors.

5.—(1) If any person liable under this Act to be called up for service claims that he conscientiously objects—

- (a) to being registered in the military service register, or
- (b) to performing military service, or
- (c) to performing combatant duties,

he may, on furnishing the prescribed particulars about himself, apply in the prescribed manner to be registered as a conscientious objector in a special register to be kept by the Minister (hereinafter referred to as "the register of conscientious objectors"):

Provided that where, in the case of a person who has been medically examined under this Act, such an application as aforesaid is made more than two days after the completion of his medical examination, the Minister shall dismiss the application unless he is satisfied, having regard to the grounds on which the application is made, that the making thereof has not been unreasonably delayed.

(2) Where any person duly makes application to be registered in the register of conscientious objectors, he shall, unless his application is dismissed in accordance with the proviso to the last foregoing subsection, be provisionally registered in that register.

(3) A person who has been provisionally registered in the register of conscientious objectors shall, within the prescribed period and in the prescribed manner, make to a local tribunal constituted under Part I of the Schedule to this Act an application stating to which of the matters mentioned in paragraphs (a) to (c) of subsection (1) of this section he conscientiously objects, and, if he fails to do so, the Minister shall remove his name from the register of conscientious objectors.

(4) An applicant for registration as a conscientious objector who is aggrieved by any order of a local tribunal, and the Minister, if he considers it necessary, may, within the prescribed time and in the prescribed manner, appeal to the appellate tribunal constituted under Part I of the Schedule to this Act, and the decision of the appellate tribunal shall be final.

(5) The Minister or any person authorised by him shall be entitled to be heard on any application or appeal to a tribunal under this section.

(6) A local tribunal, if satisfied, upon an application duly made to it under this section, or the appellate tribunal, if satisfied on appeal, that the ground upon which the application was made is established, shall by order direct either—

- (a) that the applicant shall, without conditions, be registered in the register of conscientious objectors; or
- (b) that he shall be conditionally registered in that register until the end of the present emergency, the condition being that he must until that event undertake work specified by the tribunal, of a civil character and under civilian control and, if directed by the Minister, undergo training provided or approved by the Minister to fit him for such work; or

- (c) that his name shall be removed from the register of conscientious objectors and that he shall be registered as a person liable under this Act to be called up for service but to be employed only in non-combatant duties;

but, if not so satisfied, shall by order direct that his name shall, without qualification, be removed from the register of conscientious objectors.

(7) The Minister may provisionally register in the register of conscientious objectors any person liable under this Act to be called up for service, notwithstanding that he has refused or failed to make any application in that behalf, if in the Minister's opinion there are reasonable grounds for thinking that he is a conscientious objector, and the Minister may refer the case of that person to a local tribunal; and thereupon the provisions of this section shall have effect in relation to that person as if the necessary applications had been made by him, and references in this section to the "applicant" shall be deemed to include references to him.

(8) If on the information of any person, a local tribunal is satisfied that any person who is conditionally registered in the register of conscientious objectors by virtue of a direction given under paragraph (b) of subsection (6) of this section has failed to observe that condition, the local tribunal shall report the fact to the Minister, who shall require him to make a fresh application to a local tribunal, and upon any such application that tribunal may deal with him in like manner as after being satisfied that the ground of his application was established, they had power to deal with him on his original application, but if he fails to make such a fresh application when required by the Minister, the Minister shall forthwith remove his name from the register of conscientious objectors and register him as a person liable under this Act to be called up for service but to be employed only in non-combatant duties.

(9) If, while a person is conditionally registered in the register of conscientious objectors, any change occurs in the particulars about him entered in that register, he shall forthwith notify the change to the Minister in the prescribed manner, and if he fails to do so shall be liable on summary conviction to a fine not exceeding five pounds; and the Minister may remove his name from

the register of conscientious objectors and register him as a person liable under this Act to be called up for service but to be employed only in non-combatant duties.

(10) A person shall not be liable under this Act to be called up for service so long as he is registered in the register of conscientious objectors; and the Admiralty, Army Council, and Air Council, shall make arrangements for securing that, where a person registered as a person liable under this Act to be called up for service, but to be employed only in non-combatant duties is called up under this Act for service, he shall, during the period for which he serves by virtue of being so called up, be employed only in such duties.

(11) The regulations made under this Act regulating the procedure of such tribunals as aforesaid shall make provision for the appellate tribunal to sit in two divisions, of which one shall sit for Scotland, and shall empower the tribunals to take evidence on oath, and shall make provision as to the representation of parties to proceedings before the tribunals which shall include the right to appear either in person or by counsel or a solicitor or by a representative of any trade union to which they belong or by any person who satisfies such a tribunal that he is a relative or personal friend of the party he proposes to represent.

(12) No determination of a local tribunal or the appellate tribunal made for the purposes of this Act shall be called in question in any court of law.

(13) The Minister may pay—

- (a) to members of tribunals constituted under this section such remuneration and allowances as he may, with the approval of the Treasury, determine; and
- (b) to applicants appearing before such tribunals, and to any witnesses whose attendance is certified by any such tribunal to have been necessary, travelling and subsistence allowances in accordance with such scale as the Minister may, with the consent of the Treasury, approve; and
- (c) to persons undergoing training in accordance with directions given by the Minister under

paragraph (b) of subsection (6) of this section training allowances in accordance with such scale as he may, with the consent of the Treasury, approve.

Postpone-
ment of
liability to
serve in
the forces.

6.—(1) Subject to the provisions of this section, any person for the time being liable under this Act to be called up for service who has been medically examined thereunder, or is permitted under this section so to apply without having been medically examined, may apply in the prescribed manner to the Minister for a certificate of postponement of liability to be so called up (hereinafter referred to as “a postponement certificate”), on the ground that exceptional hardship would ensue if he were called up for service, and may, on that ground, apply in the prescribed manner to the Minister for the renewal of any postponement certificate granted to him.

(2) Where application for a postponement certificate or for the renewal of a postponement certificate is made, the Minister shall, unless he grants the certificate or renewal, refer the application to a Military Service (Hardship) Committee constituted under Part II of the Schedule to this Act.

(3) An applicant for such a certificate as aforesaid who is aggrieved by the determination of a Military Service (Hardship) Committee, and the Minister, if he considers it necessary, may, within the prescribed time and in the prescribed manner, appeal to the umpire or any deputy umpire appointed by His Majesty for the purposes of the Unemployment Insurance Act, 1935, whose decision shall be final; and the umpire or any deputy umpire shall, when considering any such appeal, sit with two assessors appointed by the Minister :

24 & 25
Geo. 5 c. 8.

Provided that, if the determination of the Committee with respect to any application was unanimous, the applicant shall not be entitled to appeal to the umpire or any deputy umpire except with the leave of the Committee.

(4) The Minister or any person authorised by him shall be entitled to be heard on any reference or appeal under this section.

(5) If, with respect to any person liable under this Act to be called up for service who has not been medically examined thereunder, the Minister is satisfied that, by

reason of special circumstances, it is desirable that he should be able to apply for a postponement certificate without having been medically examined under this Act, the Minister may permit him to apply for such a certificate.

(6) An application for the grant of a postponement certificate may be made at any time when an enlistment notice has not yet been served on the applicant, or, if such a notice has been served on him, be made at any time before the day specified in the notice as the day on which he is thereby required to present himself; and an application for the renewal of a postponement certificate may be made within the prescribed time before the expiration of the period for which that certificate was granted or last renewed :

Provided that, where, in the case of a person who has been medically examined under this Act, an application for the grant of a postponement certificate is made more than two days after the completion of his medical examination, the Minister shall dismiss it unless he is satisfied, having regard to the grounds on which the application is made, that the making thereof has not been unreasonably delayed.

(7) The Minister may make regulations as to the principles to be applied, and the circumstances to which regard is and is not to be had, on the hearing of any application for the grant or renewal of a postponement certificate, and as to the period for which a postponement certificate may be granted or renewed.

(8) If, at any time while a postponement certificate is in force, it appears to the Minister that, by reason of any change in the circumstances of the person to whom the certificate was granted, the certificate ought to be revoked or the period for which it was granted or last renewed ought to be shortened, the Minister may apply to a Military Service (Hardship) Committee, and that Committee may either refuse the application or cancel the certificate or vary it by shortening the said period.

The person to whom the certificate in question on any such application was granted shall be entitled to be heard on the application; and the provisions as to appeals contained in subsection (3) of this section shall apply in relation to the application as if it were an application for the grant of a postponement certificate made by the person to whom the certificate in question was granted.

(9) No determination of the Minister, of a Military Service (Hardship) Committee, of the umpire or of any deputy umpire made for the purposes of this section shall be called in question in any court of law.

(10) The Minister may pay—

(a) to members of Military Service (Hardship) Committees, and to persons appointed to sit as assessors with the umpire or any deputy umpire such remuneration and allowances as the Minister may, with the approval of the Treasury, determine; and

(b) to persons whose applications are referred to such Committees or who appeal from the decisions of such Committees, and to any witnesses whose attendance is certified by any such Committee or by the umpire or any deputy umpire, as the case may be, to have been necessary, travelling and subsistence allowances in accordance with such scale as the Minister may, with the approval of the Treasury, determine.

Suspension
of enlist-
ment
pending
appeals, &c.

7. Where, at the beginning of the day specified in any enlistment notice as the day on which the person to whom the notice relates is thereby required to present himself, any of the following conditions is fulfilled, that is to say:—

(a) that a postponement certificate relating to him is in force,

(b) that any application or appeal by him under either of the last two foregoing sections is pending, and

(c) if any such application or appeal has been determined, that the time for bringing any appeal by him from that determination has not expired,

the enlistment notice served on him shall be of no effect.

Suspension
of right to
postpone-
ment of
liability to
serve in
the forces.

8.—(1) The Minister, if satisfied at any time that by reason of the gravity of the situation it is necessary so to do, may by order—

(a) cancel, either generally or in relation to a specified class of persons, all postponement certificates in force at the date of the order, and

- (b) abrogate, either generally or in relation to a specified class of persons, any right to apply for the grant of a postponement certificate, and any right to appeal from the refusal of a tribunal to grant such a certificate;

and the Minister may by order vary or revoke any order in force under this section, without prejudice, however, to the previous effect of that order.

(2) Where, on the day on which an order comes into force under this section abrogating any right to appeal from the refusal of a tribunal to grant a postponement certificate, such an appeal is pending on the part of a person to whom the order applies or the time for bringing such an appeal by such a person has not expired, the appeal shall be deemed to be dismissed or the time to expire, as the case may be, in the course of that day.

9. Section ninety-six of the Army Act and section ninety-six of the Air Force Act (which enable masters of apprentices who have been attested as soldiers of the regular forces or as airmen of the regular air force to claim them while they are under the age of twenty-one years) shall not apply in relation to apprentices who are to be deemed, by virtue of this Act, to have been duly enlisted in any of His Majesty's forces.

Provisions with respect to apprentices.

10.—(1) In relation to persons employed in the civil service of the State, the powers of the Minister under this Act shall be exercised in accordance with arrangements approved by the Treasury.

Arrangements as to civil servants.

(2) The validity of any notice served, certificate granted, order made, or thing done, in pursuance of this Act shall not be called in question in any court of law on the ground that the powers of the Minister have not been so exercised as aforesaid.

11.—(1) No person shall be liable under this Act to be called up for service who—

Classes of persons not subject to Act.

- (a) is a person not ordinarily resident in Great Britain who is, under the provisions of any Act in force in any part of His Majesty's dominions outside Great Britain, a national or a citizen of that part within the meaning of that Act, or is a person born or domiciled in any such part

of His Majesty's dominions or in a British protectorate, a mandated territory, or any other country or territory being a country or territory under His Majesty's protection or suzerainty; or

- (b) is a person employed in the service of the Government of a part of His Majesty's dominions outside Great Britain, or in the service of the Government of a British protectorate, a mandated territory or some other country or territory which is under His Majesty's protection or suzerainty, being a person whose presence in Great Britain is occasioned solely by his employment in that service, or
- (c) is a member of any of the armed forces of the Crown, or
- (d) is undergoing training as a cadet at the Royal Military Academy, the Royal Military College, or the Royal Air Force College, or
- (e) is a man in holy orders or a regular minister of any religious denomination, or
- (f) is the subject of an order or inquisition under the Lunacy and Mental Treatment Acts, 1890 to 1930, or is being detained in pursuance of section twenty-five of the Lunacy Act, 1890, or as a criminal lunatic or in pursuance of an order made under the Criminal Lunatics Act, 1884, or is undergoing treatment as a temporary patient under section five of the Mental Treatment Act, 1930, or is a person placed in an institution or a certified house, or under guardianship, under section three of the Mental Deficiency Act, 1913, or is the subject of an order under section six, eight, or nine of that Act, or is under supervision provided under paragraph (b) of section thirty of that Act, or is an inmate of a home approved under section fifty of that Act, or is the subject of a notification under subsection (2) of section fifty-one of that Act, or
- (g) is certified by a local authority, as defined by the Blind Persons Acts, 1920 and 1938, to be registered as a blind person under arrangements made by the authority under those Acts.

53 & 54 Vict.
c. 5.

47 & 48 Vict.
c. 64.

20 & 21
Geo. 5. c. 23.

3 & 4 Geo. 5.
c. 28.

(2) For the purposes of paragraph (a) of the last foregoing subsection, a person who is resident in Great Britain shall be deemed to be ordinarily resident there unless he has been resident in Great Britain for less than two years or is residing there only for the purpose of attending a course of education, or the circumstances of his residence in Great Britain are otherwise such as to show that he is residing there for a temporary purpose only.

(3) Where any person upon whom there is duly served a notice under this Act requiring him to do something on a future date is, at that date, not subject to this Act, he shall, for the purposes of that notice, be deemed not to have been subject to this Act at the date of the service of the notice.

12.—(1) Until the end of the present emergency, the provisions of the Military Training Act, 1939, requiring persons to register under that Act shall cease to have effect, and no person shall be liable to be called up for military training under that Act.

Operation of
Military
Training
Act, 1939.
2 & 3 Geo. 6.
c. 25.

(2) Any person who at the commencement of this Act was registered under the Military Training Act, 1939, or who was required to be so registered at any time before the commencement of this Act, shall be liable to be called up for service under this Act notwithstanding that he may not be so liable by virtue of any proclamation made under this Act.

(3) Any person who at the commencement of this Act is registered under the Military Training Act, 1939, shall be deemed, in the case of a person registered in the military training register under that Act, to be registered in the military service register under this Act, and in the case of a person registered in the register of conscientious objectors under that Act, to be registered in the register of conscientious objectors under this Act; and any order of the local tribunal or of the appellate tribunal made under paragraph (b) or paragraph (c) of subsection (7) of section three of that Act shall have effect as if it had been made under paragraph (b) or paragraph (c) of subsection (6) of section five of this Act, as the case may be, so, however, that where the work to be performed in accordance with paragraph (b) of the said section five has not been specified by the tribunal, the tribunal shall on the application of the Minister specify such work.

(4) Any action taken before the commencement of this Act under section four of the Military Training Act, 1939, (which relates to medical examination) shall be deemed to have been taken under section three of this Act and may be proceeded with accordingly.

(5) A military training notice served on any person before the commencement of this Act shall have effect as if it were an enlistment notice served under this Act, so however that no such notice shall require any person to present himself for service at a date earlier than that specified in the military training notice.

(6) Nothing in this section shall apply to any person who under the Military Training Act, 1939, is deemed to have been, before the commencement of this Act, duly enlisted as a militiaman under section thirty of the Territorial and Reserve Forces Act, 1907.

7 Edw. 7.
c. 9.

Provisions
as to certain
persons
sentenced
by court
martial.

13.—(1) If any person, being a person who has made application for registration as a conscientious objector but who has nevertheless been called up under this Act for service, is undergoing a sentence of penal servitude or of imprisonment for a term of three months or more imposed on him by a court martial in respect of an offence committed by him while in Great Britain, then if he claims that the offence was committed by reason of his conscientiously objecting to performing military service or to obeying any order in respect of which the offence was committed he may apply in the prescribed manner to have his case considered by the appellate tribunal constituted under Part I of the Schedule to this Act, and that tribunal shall, if it finds that the offence for which he was sentenced was committed by reason of such conscientious objection as aforesaid have power to recommend to the Admiralty or to the Secretary of State that he be discharged from service in the armed forces of the Crown as soon as may be after serving the sentence imposed upon him.

(2) Upon receiving from the appellate tribunal a recommendation made under this section that a person be discharged from the armed forces of the Crown it shall be the duty of the Admiralty or of the Secretary of State as the case may be to arrange for his discharge accordingly.

(3) Where the appellate tribunal recommend under this section that a person be discharged from the armed forces of the Crown the tribunal shall have power to make any order with respect to his registration as a conscientious objector or as a person liable to be employed on non-combatant duties only which they would have had power to make on an appeal under section five of this Act, and any such order shall have effect immediately upon his discharge.

14.—(1) It shall be the duty of any employer by whom a person called up under this Act for service or by whom a member of His Majesty's reserve and auxiliary forces called out for service under the permanent enactments relating to those forces, whether before or after the commencement of this Act was employed when he was called from his civil employment for service connected with the present emergency, to reinstate him in his employment at the termination of that service in an occupation and under conditions not less favourable to him than those which would have been applicable to him had he not been so called as aforesaid, and if he fails to do so, the employer shall, subject as hereinafter provided, be liable on summary conviction to a fine not exceeding fifty pounds; and the court by which any employer is found guilty of an offence under this subsection may order him to pay to the person whom he has failed to reinstate a sum not exceeding an amount equal to twelve weeks' remuneration at the rate at which his remuneration was last payable to him by the employer :

Reinstatement in civil employment.

Provided that in any proceedings under this subsection it shall be a defence for the employer to prove that the person formerly employed by him did not, before the expiration of one month after the termination of such service as aforesaid, apply to the employer for reinstatement, or that, having been offered reinstatement by him, he failed, without reasonable excuse, to present himself for employment at the time and place notified to him by the employer, or that by reason of a change of circumstances (other than the engagement of some other person to replace him)—

- (a) it was not reasonably practicable to reinstate him; or
- (b) his reinstatement in an occupation and under conditions not less favourable to him than those

which would have been applicable to him had he not be called from his civil employment for service connected with the present emergency, was impracticable, and that the employer has offered to reinstate him in the most favourable occupation and under the most favourable conditions reasonably practicable.

(2) For the purpose of securing the fair adjustment of contracts of service or apprenticeship in force between employers and employees when the employees are or were called from their civil employment for service connected with the present emergency, the Minister may make regulations relieving the parties to such contracts of all or any of their obligations thereunder in respect of the period of that service, and may also make regulations modifying such contracts by extending the period of service or apprenticeship thereunder by a period not exceeding the period of the said service, and adapting the terms of the contracts in relation to any such extension.

(3) In relation to any person called from his civil employment for service connected with the present emergency, references in this section to an employer shall be construed as including references to any person for the time being carrying on the undertaking or service in which he was employed when so called as aforesaid, or carrying on any undertaking or service with which that undertaking or service has been amalgamated or in which it was comprised on the date on which he was so called as aforesaid.

(4) If the Minister is satisfied that it is necessary to restrain employers from terminating the employment of their employees by reason of any duties or liabilities which they are or may become liable to perform or discharge by reason of their having been called from their civil employment for service connected with the present emergency, or to make provision for the prevention of evasion of the provisions of this section, he may make regulations for those purposes, and such regulations may make provision for the punishment of breaches of the regulations, and may in particular apply with respect to persons found guilty of such breaches any of the provisions of this section relating to persons found guilty of offences under this section, with or without modifications.

(5) In this section the expression "His Majesty's reserve and auxiliary forces" has the same meaning as in the Reserve and Auxiliary Forces Act, 1939, and the expression "permanent enactments relating to His Majesty's reserve and auxiliary forces" means the enactments (including any proclamation, Order in Council, regulations, warrant, or other instrument) mentioned in subsection (3) of section one of that Act; and "the employer by whom a person called from his civil employment for service connected with the present emergency" means the employer by whom a person was employed when that person was called up under the Military Training Act, 1939, called out under the Reserve and Auxiliary Forces Act, 1939, called up under this Act, or called into actual service, ordered to join the royal navy, ordered to serve in the royal marine forces, called out on permanent service, embodied or called out for service, under the permanent enactments relating to His Majesty's reserve and auxiliary forces.

2 & 3 Geo. 6.
c. 24.

15.—(1) Subject to the provisions of this section, His Majesty may by Order in Council make provision for such consequential matters as it appears to Him expedient to provide for by reason of the passing of this Act, and may by any such Order modify any enactment relating to such matters.

Power to
provide for
consequen-
tial matters.

(2) Any Order in Council made under this section may provide for the continuance of any provisions contained therein after the expiry of this Act; and any such Order may, while this Act is in force, be varied or revoked by any subsequent Order made in like manner as the original Order.

(3) The draft of any Order in Council proposed to be made under this section shall not be submitted to His Majesty unless it has been approved by resolutions passed by each House of Parliament:

Provided that if, at any time when Parliament is dissolved or prorogued, or when both Houses of Parliament are adjourned for more than fourteen days, it is shown to the satisfaction of a Secretary of State that the making of an Order in Council under this section is urgently necessary, a draft of the Order need not be laid before Parliament, but the Order shall, except as

respects things previously done or omitted to be done, cease to have effect at the expiration of the period of twenty-eight days beginning with the date on which the Commons House first sits after the making of the Order, unless within that period resolutions approving the making of the Order are passed by both Houses of Parliament.

False
state-
ments and
forgery.

16. Any person who—

- (a) in giving any information for the purposes of this Act knowingly or recklessly makes any statement which is false in a material particular, or
- (b) with intent to deceive—
 - (i) forges or uses, or lends to or allows to be used by any other person, any certificate under this Act, or
 - (ii) makes, or has in his possession, any document so closely resembling any certificate under this Act as to be calculated to deceive,

shall be guilty of an offence and liable, on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and such fine.

General
provisions
as to
offences.

17.—(1) Any person guilty of an offence under this Act, not being an offence for which a penalty is thereby expressly provided, by reason of non-compliance with any of the provisions of this Act shall be liable on summary conviction to a fine not exceeding five pounds :

Provided that in any proceedings for an offence punishable under this section it shall be a defence for the defendant to prove that he was prevented from complying with the relevant provisions of this Act by circumstances beyond his control.

(2) Proceedings for an offence under this Act may be taken against any person at any place at which he is for the time being.

(3) Notwithstanding any limitation imposed by law as respects the time within which proceedings under the Summary Jurisdiction Acts may be commenced, proceedings against any person for an offence under this Act alleged to have been committed by him while outside Great Britain, may be commenced at any time after the

date on which he is alleged to have committed that offence; and proceedings for any other offence under this Act may be commenced at any time within the period of six months from the date on which evidence sufficient in the opinion of the Minister to justify a prosecution for the offence, comes to his knowledge, or within the period of twelve months after the commission of the offence, whichever period last expires.

(4) For the purposes of the last foregoing subsection a certificate purporting to be signed by the Minister as to the date on which such evidence as aforesaid came to his knowledge shall be conclusive evidence thereof.

18. Any notice to be served on any person for the purposes of any of the provisions of this Act may be sent by post addressed to that person at his last known address. Service of notices.

19.—(1) The Minister may make regulations regulating any matter of procedure under this Act, and such regulations may, in particular, make provision as to the quorum necessary to constitute a meeting of any tribunal or committee appointed for the purposes of this Act. Regulations and orders.

(2) Any regulations made under this Act by the Minister shall, as soon as may be after they are made, be laid before Parliament.

(3) If either House of Parliament, within the period of forty days beginning with the day on which any such regulations as aforesaid are laid before it, resolves that the regulations be annulled, they shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(4) Section one of the Rules Publication Act, 1893, 56 & 57 Vict. shall not apply to any Order in Council or regulations made under this Act. c. 66.

20. Any expenses incurred by the Minister or by any Secretary of State or other Minister of the Crown, in consequence of the passing of this Act or the making of Expenses.

any Order in Council thereunder, shall be defrayed out of moneys provided by Parliament.

Interpreta-
tion.

21.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“mandated territory” means a territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by the Government of any part of His Majesty’s dominions;

“the Minister” means the Minister of Labour;

“prescribed” means prescribed by regulations made by the Minister under this Act;

(2) For the purposes of this Act, the present emergency shall be deemed to end or to have ended as the case may be on such date as His Majesty may by Order in Council appoint.

(3) For the purposes of this Act and of any proclamation made thereunder, the time at which a person attains a relevant age shall be deemed to be, according to law in force elsewhere than Scotland as well as according to the law in force in Scotland, the commencement of the relevant anniversary of the date of his birth.

Application
to Scotland.

22. In the application of this Act to Scotland subsection (1) of section eleven of this Act shall have effect as if for paragraph (f) thereof the following paragraph were substituted:—

29 & 30 Vict.
c. 51.

“(f) is the subject of an order or warrant for his detention or custody under the Lunacy (Scotland) Acts, 1857 to 1919, or is being entertained and kept in an asylum in pursuance of section fifteen of the Lunacy (Scotland) Act, 1866, or is a person for whose safe custody during His Majesty’s pleasure His Majesty is authorised to give order or is a prisoner whom the Secretary of State or the Prisons Department for Scotland has, in pursuance of any Act, directed to be removed to a criminal lunatic asylum or to the criminal lunatic department of Perth prison or to an asylum, or is a person placed in an institution or a certified house or under guardianship under section four of the Mental Deficiency and Lunacy (Scotland) Act, 1913, or is the subject of an order under section seven, nine, or ten of that Act.”

3 & 4 Geo. 5.
c. 38.

23. His Majesty may by Order in Council direct that this Act shall extend to the Isle of Man, subject to such modifications and adaptations as may be specified in the Order, and upon this Act being so extended, references in this Act and in any instrument made thereunder to Great Britain shall be construed as including references to the Isle of Man; and as from the date on which such an Order comes into operation any proclamation made under this Act shall, in relation to the Isle of Man, have effect as if the said date were the date of the proclamation.

Power to
extend to
Isle of Man.

24. This Act may be cited as the National Service Short title.
(Armed Forces) Act, 1939.

Section 5.

SCHEDULE.

PART I.**LOCAL AND APPELLATE TRIBUNALS.***Local Tribunals.*

Local tribunals shall be appointed for such districts as the Minister may determine, and shall consist of a chairman and four other members appointed by the Minister. In appointing members of such tribunals the Minister shall have regard to the necessity of selecting impartial persons, and of the four members not less than one shall be appointed by the Minister after consultation with organisations representative of workers.

The chairman shall be a county court judge or, in the case of a local tribunal for a district in Scotland, a sheriff or sheriff-substitute.

The Appellate Tribunal.

Each division of the appellate tribunal shall consist of a chairman and two other members appointed by the Minister. In appointing members of the appellate tribunal the Minister shall have regard to the necessity of selecting impartial persons, and of the two members one shall be appointed by the Minister after consultation with organisations representative of workers.

The chairman shall be a person nominated in the case of the division for England by the Lord Chancellor and in the case of the division for Scotland by the Lord President of the Court of Session.

PART II.**MILITARY SERVICE (HARDSHIP) COMMITTEES.**

Military service (Hardship) Committees shall be appointed for such districts as the Minister may determine, and shall consist of a chairman appointed by the Minister and of two other persons selected by the Minister from a panel constituted by him for the purposes of this Act, which shall, so far as practicable,

include all persons being members of one or other of the panels constituted under section forty-one of the Unemployment Insurance Act, 1935.

The chairman shall be a person holding the office of chairman of a court of referees under the said section forty-one, or having such other qualifications as the Minister considers suitable.

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